

SENATE BILL 216

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 39; Title 62 and Title 66, relative to deed
fraud.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 66-3-104, is amended by deleting subsection (a) and substituting:

(a) A person who transfers land by execution of a general warranty deed with knowledge of outstanding liens, mortgages, deeds of trust, or other claims against such transferred land with the intent to defraud, commits a Class E felony, punishable with imprisonment as described in § 40-35-111(b)(5). In addition, the jury may assess a fine not to exceed four thousand dollars (\$4,000).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.